

Provided that if the last census was taken one year before the beginning of the financial year, the grant for that particular year shall be based on the population as determined by that population census.

(2) (*Repealed*).

PART II

STATE ROAD GRANT

2. The State road grant payable to each of the States of Malaya in respect of a financial year shall be calculated by multiplying—

- (a) the average cost to a State of maintaining a mile of State road at the minimum standard determined for State roads in those States by the Federal Government after consultation with the National Finance Council; by
- (b) so much of the mileage of State roads in that State as qualifies for grant.

3. For the purpose of section 2—

- (a) the mileage of State roads in a State shall be taken to be that mileage as on the thirty-first day of December of the preceding financial year, and the average cost mentioned in paragraph (a) of that section shall be taken to be the average cost in that State calculated in the preceding financial year; and
- (b) the maintenance of State roads means the preservation, upkeep and restoration of State roads, roadside furniture, bridges, viaducts or culverts forming part thereof or connected therewith as nearly as possible in their original condition as constructed or as subsequently improved.

4. A length of State road if it is actually maintained by the Public Works Department of the State at or above the minimum standard mentioned in paragraph 2(a) and a length of any road within the limit of a local authority if such road is certified by the Public Works Department of the State as coming within the qualifying standard and maintained at or above the minimum standard as mentioned in paragraph 2(a) qualify for grant.

5. In this Part of this Schedule, “State road” means any public road other than a federal road, and any other road other than a federal road to which the public has access.

6. (1) The State road grant payable to Sabah or Sarawak shall, in each of the years 1964 and 1965, be payable at the rate of RM4,500 a mile in respect of a mileage in Sabah of 1,151 miles and in Sarawak of such amount as may be agreed between the Federal and State Governments.

(2) Thereafter sections 2 to 5 shall apply to the State road grant so payable with the following modifications:

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Tenth Schedule—(cont.)

(c) Paragraphs (a), (b), (c) and (d) which read as follows were substituted by Act 503, section 2, in force from 01-01-1992:

- “(a) for the first 100,000 persons at the rate of \$20 per person;
- (b) for the next 150,000 persons at the rate of \$10 per person;
- (c) for the next 250,000 persons at the rate of \$6 per person;
- (d) for the remainder at the rate of \$3 per person.”.

(d) Paragraphs (a), (b), (c) and (d) which read as follows were substituted by Act 622, section 2, force from 01-01-2002:

- “(a) for the first 50,000 persons at the rate of RM60.00 per person;
- (b) for the next 500,000 persons at the rate of RM8.50 per person;
- (c) for the next 500,000 persons at the rate of RM9.00 per person;
- (d) for the remainder at the rate of RM9.50 per person.”.

Subsection 1(2)

This subsection which read as follows was repealed by Act 25/1963, section 8, in force from 29-08-1965:

“(2) Notwithstanding subsection (1), if a capitation grant falls to be made in respect of a financial year beginning before the first day of January, nineteen hundred and fifty-nine, it shall be based on the population of the State as determined at the census taken in the year nineteen hundred and fifty-seven.”.

PART II

See Art. 109(1)(b).

Section 2

1. The words “each of the States of Malaya” substituted for the words “each State” by Act 26/1963, paragraph 51(a), in force from 16-09-1963.
2. *See* sections 3, 4 & subsection 6(2).

Paragraph (2)(a)

1. The words “to a State” which appear after the words “average cost” were inserted by Act 25/1963, subsection 7(1), in force from 01-01-1958.
2. The words “State roads in those States” substituted for the words “such roads” by Act 26/1963, paragraph 51(a), in force from 16-09-1963.
3. The words “including the cost of repairing and maintaining any bridges, viaducts or culverts forming part thereof or connected therewith,” which appear after the words “State road” were inserted by Act 59/1966, section 2, in force from 01-01-1963.
4. The words “, including the cost of repairing and maintaining any bridges, viaducts or culverts forming part thereof or connected therewith,” were deleted after the words “State road” by Act A514, paragraph 18(b), in force from 15-05-1981.

Section 3

1. The words “throughout the States of Malaya” substituted for the words “throughout the Federation” by Act 26/1963, paragraph 51(b), in force from 16-09-1963.
2. *See* subsection 6(2).

- (a) the minimum standard mentioned in paragraph 2(a) shall be the minimum standard determined for State roads in the State; and
- (b) any length of road maintained by a local authority at the expense of the State shall be treated as maintained by the Public Works Department of the State.

PART III

SOURCES OF REVENUE ASSIGNED TO STATES

1. Revenue from toddy shops.
2. Revenue from lands, mines and forests.
3. Revenue from licences other than those connected with water supplies and services, mechanically propelled vehicles, electrical installations and registration of businesses.
4. Entertainments duty.
5. Fees in courts other than federal courts.
6. Fees and receipts in respect of specific services rendered by departments of State Governments.
7. Revenue of town boards, town councils, rural boards, local councils and similar local authorities other than—
 - (a) municipalities established under any Municipal Ordinance;
 - (b) those town boards, town councils, rural boards, local councils and similar local authorities which have power under written law to retain their revenues and control the spending thereof.
8. Receipts in respect of raw water.
9. Rents on State property.
10. Interest on State balances.
11. Receipts from land sales and sales of State property.
12. Fines and forfeitures in courts other than federal courts.
13. Zakat, Fitrah and Baitulmal and similar Islamic religious revenue.
14. Treasure trove.

PART IV

SPECIAL GRANTS TO STATES OF SABAH AND SARAWAK

1. (1) In the case of Sarawak a grant of RM5,800,000 in each year.

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Tenth Schedule—(cont.)

3. This section was substituted by Act A514, paragraph 18(c), in force from 15-05-1981. The earlier section read as follows:

“3. For the purposes of section 2 the mileage of State roads in a State shall be taken to be that mileage as on the thirty-first day of December of the basis year, and the average mentioned in paragraph (a) of that section shall be taken to be average throughout the States of Malaya in the basis year.”.

Section 4

1. The present section was substituted by Act 59/1966, section 2, in force from 01-01-1963, and replaced the original section which read as follows:

“4. A length of State road qualifies for grant if it is actually maintained by the Public Works Department of the State at or above the minimum standard mentioned in section 2(a); except that any length not qualifying for grant in the preceding financial year qualifies for grant only if the Federal Government has agreed to its so qualifying.”.

2. *See* subsection 6(2).

3. The words “except that any length not qualifying for grant in the preceding financial year qualifies for grant only if the Federal Government has agreed to its so qualifying” were deleted after the words “qualify for grant” in the present section by Act A514, paragraph 18(d), in force from 15-05-1981.

Section 5

1. The words “public road other than a federal road, and any other road other than a federal road to which the public has access” substituted for the words “road other than a federal road” by Act 14/1962, section 29, in force from 21-06-1962.

2. *See* subsection 6(2).

3. This section was substituted by Act A514, paragraph 18(e), in force from 15-05-1981. The earlier section read as follows:

“5. In this Part of this Schedule—

(a) “State road” means any public road other than a federal road, and any other road other than a federal road to which the public has access;

(b) “basis year” means the financial year beginning two years earlier than the financial year in respect of which the grant is made.”.

Section 6

Added by Act 26/1963, subsection 45(2), in force from 16-09-1963.

Paragraph (2)(a)

Substituted by Act A514, paragraph 18(f), in force from 15-05-1981. The earlier subsection read as follows:

“(a) the average cost and minimum standard mentioned in section 2(a) shall be respectively the average in the State and the minimum standard determined for State roads in the State;”.

PART III

See Art. 110.

Items 1, 3, 4, 5, 6, 7, 8, 12 & 14: See Art.110(2).

Item 3

The words “water supplies and services,” were inserted after the words “connected with” by Act A1239, subparagraph 5(a)(i), in force from 31-01-2007.

Item 8

Substituted by Act A1239 subparagraph 5(a)(ii), in force from 31-01-2007. The original item read as follows:

“Receipts in respect of water supplies including water rates.”.

(2) In the case of Sarawak, a grant of which the amount in 1964 and each of the four following years shall be respectively RM3½m., RM7m., RM11½m., RM16m. and RM21m., and in later years shall be fixed on a review under Article 112D.

2. (1) In the case of Sabah, a grant of amount equal in each year to two-fifths of the amount by which the net revenue derived by the Federation from Sabah exceeds the net revenue which would have been so derived in the year 1963 if—

(a) the Malaysia Act had been in operation in that year as in the year 1964; and

(b) the net revenue for the year 1963 were calculated without regard to any alteration of any tax or fee made on or after Malaysia Day,

(“net revenue” meaning for this purpose the revenue which accrues to the Federation, less the amounts received by the State in respect of assignments of that revenue).

(2) In the case of Sabah, for any year before 1968 in which the State road grant is less than RM5,179,500, a supplement to that grant of an amount equal to the deficiency.

3. In either case, for any year before 1974 and, if at the beginning of 1974 the Legislature of the State has power to make laws with respect to the carriage of passengers and goods by land or to mechanically propelled road vehicles, then during the continuance of that power, a grant equal to the cost to the State in the year of the State road transport department.

PART V

ADDITIONAL SOURCES OF REVENUE ASSIGNED TO STATES OF SABAH AND SARAWAK

1. Import duty and excise duty on petroleum products.
2. Export duty on timber and other forest produce.
3. So long as the royalty levied by the State on any mineral chargeable with export duty other than tin (but including mineral oils) does not amount to 10 per cent *ad valorem* calculated as for export duty, export duty on that mineral or such part of the export duty as makes the total of royalty and duty on exported mineral up to 10 per cent *ad valorem* so calculated.
4. In the case of Sabah, so long as medicine and health remains an item in the Concurrent List and expenses in respect of that item are borne by the State, 30 per cent of all customs revenue other than that in respect of the duties mentioned in sections 1, 2 and 3.
5. For any year before 1974 and, if at the beginning of 1974 the Legislature of the State has power to make laws with respect to the carriage of passengers and goods by land or with respect to mechanically propelled road vehicles or

Federal Constitution

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Tenth Schedule—(cont.)

Item 13

The words “Islamic religious revenue” substituted for the words “Muslim revenue” by Act A354, section 45, in force from 27-08-1976.

PART IV

1. Added by Act 26/1963, subsection 45(1), in force from 16-09-1963.
2. *See* Art. 112c(1)(a), (2) & 112D(1).

Sections 1 & 2: See Art. 112D(1).

PART V

1. Added by Act 26/1963, subsection 45(1), in force from 16-09-1963.
2. *See* Art. 112c(1)(b), (2) & 112D(5).

Sections 1 & 2: See section 4.

Section 3: See Art. 112c(2), section 4.

Section 4: See Art. 112c(2) & 112D(5).

licences connected with those vehicles, then during the continuance of that power, fees from such licences.

6. For any year before 1974, and if at the beginning of 1974 the Legislature of the State has power to make laws with respect to the registration of mechanically propelled vehicles, then during the continuance of that power, fees from the registration of such vehicles.

7. State sales taxes.

8. Fees and dues from ports and harbours other than federal ports and harbours.

9. Receipts in respect of water supplies and services, including water rates.

10. Revenue from licences connected with water supplies and services.

ELEVENTH SCHEDULE

[Article 160(1)]

***Provisions of the Interpretation and
General Clauses Ordinance 1948
(Malayan Union Ordinance No. 7 of 1948),
Applied for Interpretation of the Constitution***

Section	Subject Matter
2(56)	<i>Meaning of “month”—</i> “month” means calendar month according to the Gregorian calendar.
2(61)	<i>Meaning of “person” and “party”—</i> “person” and “party” includes any body of persons, corporate or unincorporate.
2(88)	<i>Definition of “subsidiary legislation”—</i> “subsidiary legislation” means any Order in Council, proclamation, rule, regulation, order, notification, by-law or other instrument made under any Ordinance, Enactment or other lawful authority and having legislative effect.
2(94)	<i>Construction of masculine gender—</i> words importing the masculine gender include females.
2(95)	<i>Construction of singular or plural—</i> words in the singular include the plural, and words in the plural include the singular.

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Tenth Schedule—(cont.)

Sections 5, 6, 7 & 8: See Art. 112D(5).

Items 9 & 10: Added by Act A1239, paragraph 5(b), in force from 21-03-2005.

Eleventh Schedule

Section 13: Inserted by Act 14/1962, section 30, in force from 31-08-1957.

Section	Subject Matter
2(96)	<i>Meaning of “writing”—</i> “writing” and expressions referring to writing include printing, lithography, typewriting, photography, and other modes of representing or reproducing words or figures in visible form.
2(98)	<i>Meaning of “year”—</i> “year” means a year reckoned according to the Gregorian calendar.
7	<i>Forms—</i> Save as is otherwise expressly provided, whenever forms are prescribed slight deviations therefrom, not affecting the substance or calculated to mislead, shall not invalidate them.
13	<i>Effect of repeal—</i> Where a written law repeals in whole or in part any other written law, then, unless the contrary intention appears, the repeal shall not— (a) revive anything not in force or existing at the time at which the repeal takes effect; or (b) affect the previous operation of any written law so repealed or anything duly done or suffered under any written law so repealed; or (c) affect any right, privilege, obligation or liability acquired, accrued or incurred under any written law so repealed; or (d) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against any written law so repealed; or (e) affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if the repealing law had not been passed.
21	<i>(Repealed).</i>

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Eleventh Schedule—(cont.)

Section 21

This section was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“Exercise of statutory powers between enactment and commencement of Ordinance or Enactment—

21. When an Ordinance or Enactment which is not to come into operation immediately on the passing thereof confers power to make any appointment or to make subsidiary legislation, or to issue notifications, or to prescribe forms or to do any other thing for the purposes of the Ordinance or Enactment, such power may, unless the contrary intention appears, be exercised at any time after the passing of the Ordinance or Enactment, subject to the restriction that any appointment, instrument, notification or thing made, granted, issued, given or done under such power shall not, unless the contrary intention appears in the Ordinance or Enactment, or the appointment, instrument, notification or thing is necessary for bringing the Ordinance or Enactment into operation, have any effect until the Ordinance or Enactment comes into operation.”.